MHMA Committee Governance Policy

Executive Summary

This policy establishes a clear, balanced, and bylaw-compliant framework for how committees within the Mountain House Muslim Association (MHMA) are formed, led, overseen, and evaluated.

Key principles include:

- Committees exist solely to support the Board of Directors (BOD) and Board of Trustees (BOT)
- Authority is intentionally shared to prevent concentration of power
- The President provides leadership through initiative and nomination
- Governing boards provide oversight through ratification and performance review
- Transparency, accountability, and collaboration are core expectations

This policy operationalizes the MHMA bylaws where they are silent or ambiguous, without modifying or superseding them. Its purpose is to strengthen governance, improve committee effectiveness, and preserve institutional trust through clear roles and shared responsibility.

1. Purpose and Intent

This policy establishes a clear, balanced, and bylaw-compliant framework for the creation, appointment, oversight, and performance evaluation of committees within the Mountain House Muslim Association (MHMA).

The intent of this policy is to:

- Preserve the balance of authority between the Board of Trustees (BOT), Board of Directors (BOD), and the President
- Ensure committees remain accountable, effective, and mission-aligned
- Operationalize the intent of the MHMA bylaws where they are silent or ambiguous, without reallocating authority
- Promote collaboration, transparency, and shared responsibility

This policy is expressly subordinate to and governed by the MHMA bylaws.

2. Authority and Scope

Committees exist solely to support and assist the governing bodies of MHMA and do not possess independent authority.

In accordance with Article XI of the MHMA bylaws:

- Committees are appointed by the Board of Directors, except for Religious and Masjid Construction committees, which are appointed by the Board of Trustees
- Committees may be statutory or non-statutory
- Committees may be standing, temporary, or special-purpose

This policy applies to all committees of MHMA without exception.

3. Types of Committees

3.1 Statutory Committees

Statutory committees are those explicitly listed in Article XI of the bylaws, including but not limited to:

- Facilities Committee
- Religious (Hidaya) Committee
- Educational Committee
- Finance Committee
- Events Committee
- Community Relations Committee
- Communications & Marketing Committee
- Youth Committee

Statutory committees shall be announced within six weeks of a new Board of Directors taking office.

3.2 Non-Statutory Committees

Non-statutory committees may be established as needed to address specific objectives, initiatives, or time-bound requirements.

4. Committee Formation and Reporting Lines

4.1 Formation Authority

- The Board of Directors appoints all committees except Religious and Masjid Construction committees
- The Board of Trustees appoints Religious and Masjid Construction committees
- The Board of Trustees may instruct the Board of Directors to form a special-purpose committee that reports to the Board of Trustees

4.2 Reporting Structure

- All committees report to the body that appoints them
- Unless otherwise specified in the bylaws, committees report to the Board of Directors

5. Role of the President

The President, as Chair of the Board of Directors and chief executive officer of MHMA operations, plays a central but non-unilateral role in committee governance.

The President shall:

- Institute committees by initiating their formation, defining their initial scope, and placing committee appointments before the appropriate board
- Nominate committee chairs for all committees, without exception
- Serve as the executive liaison between committees and the governing boards
- Execute board decisions related to committee appointments, changes, or dissolution

The President's authority to nominate committee chairs is subject to board ratification, ensuring collaboration and accountability.

6. Appointment of Committee Chairs

Both the President and the governing body are expected to exercise their respective roles in good faith and in the best interests of MHMA, with the objective of timely and effective committee leadership.

6.1 Nomination

- The President shall nominate one individual to serve as chair for each committee
- The nomination shall be presented to the governing body to which the committee reports

6.2 Ratification

- The governing body shall ratify or reject the nomination by a simple majority vote
- Ratification confirms the appointment of the chair

6.3 Rejection and Resubmission

- If a nomination is not ratified, the President shall submit an alternative nomination
- The governing body may not appoint a chair independently of the President's nomination
- The President and governing body are encouraged to consult prior to resubmission to avoid prolonged vacancies

This process preserves executive initiative while maintaining board oversight.

7. Appointment of Committee Members

- Committee chairs are responsible for identifying and recruiting committee members
- All committee members must be members of MHMA
- The chair shall submit a list of proposed members to the governing body
- Committee members shall be ratified by a simple majority vote of the respective governing body.
- One or more members of the Board of Directors shall serve as ex-officio, non-voting members of each committee.

8. Goals, Objectives, and Budget

- The Board of Directors shall set the annual goals, objectives, and budget for all committees, except Religious and Masjid Construction committees

- Religious and Masjid Construction committees operate under the strategic and fiduciary oversight of the Board of Trustees
- Committee goals and budgets shall be reviewed annually and adjusted as necessary

9. Performance Review, Accountability, and Transparency

9.1 Review Cycle

- Each committee's performance shall be reviewed quarterly by the body to which it reports
- Performance shall be evaluated against approved goals, objectives, and budget

9.2 Corrective Action

If a committee fails to meet its performance expectations:

- The reporting body may issue a corrective action plan
- The reporting body may advise the President to make changes to committee leadership

9.3 Chair Replacement

- If a committee fails to meet performance expectations for two consecutive quarterly reviews, the reporting body may instruct the President to nominate a new chair
- The replacement process shall follow the same nomination and ratification procedure

9.4 Committee Meetings and Records

- Committees are expected to meet regularly, at a frequency appropriate to their responsibilities
- Committees shall maintain written minutes of their meetings
- Meeting minutes shall be shared with:
    - Committee members
    - The governing body to which the committee reports
- The appointing body may, at its discretion, make committee minutes available to MHMA members or the public, excluding confidential, sensitive, or personnel-related information

10. Vacancies and Interim Arrangements

- In the event of a chair vacancy, the President may propose interim arrangements subject to board acknowledgment
- Committees may continue limited operations during interim periods as directed by the governing body

11. Term and Dissolution

- Committee appointments are for a one-year term and may be extended
- Committees may be dissolved by the governing body that appointed them

- Upon dissolution, all committee records and materials shall be returned to MHMA

12. Interpretation and Supremacy

- This policy shall be interpreted in a manner consistent with the MHMA bylaws
- In case of ambiguity or conflict, the Board of Trustees retains final interpretive authority as provided in the bylaws

13. Citations and Reasoning

This policy is grounded in the following bylaw provisions:

- Article VII §4(a)(iv): President institutes statutory and non-statutory committees
- Article XI §§1–3: Committee purpose, appointment authority, and special committee formation
- Article XI §2: Chair responsibility for recruiting members
- Article XI §5: Board oversight through ex-officio representation
- Article VI §6(i): Board of Trustees authority to resolve ambiguities

Reasoning:

- The bylaws intentionally separate initiation, appointment, and oversight functions
- Nomination with ratification preserves executive leadership while preventing concentration of power
- Performance oversight reinforces accountability without undermining volunteer governance

This policy reflects the original intent of the bylaws: shared governance, collaboration, and institutional stability.